

ORDERS ON MEMO DATED 14.09.2023 AND
AFFIDAVIT OF JDR V. MUNIRAJU

In fact, the Decree Holders have filed the petition under Order XXI Rule 11 of CPC for the execution of Judgment and Decree drawn on O.S. No. 5682/2016.

A perusal of compromise petition filed in O.S. No.5682/2016 under Order XXIII Rule 3 of CPC would show that, the defendant had agreed to take possession of property bearing site No.46 formed in Sy. No.26 from mortgagee's and hand over the same to the plaintiffs along with original documents.

Now, JDR would submit that in pursuance with compromise so arrived in O.S. No.5682/2016, he had handed over possession of the property bearing No.46 along with original documents to the plaintiffs. Hence, he requested the court to dismiss the petition as fully satisfied.

In fact, Memo dated 14.09.2023 is accompanied with a joint memo. This memo is signed by Decree Holder as well as their counsels. As per this Memo, JDR had handed over physical possession of the premises along with original documents to the Decree Holders. The contents of joint Memo is not at all denied by the Decree Holders. In addition to it, it is not their contention

that joint Memo does not bear their signatures and signature of their counsel.

Now objection is filed by the Decree Holder to the Memo to the effect that they admit the Memo in part however original documents are not handed over by the JDR. This objection has no legs to stand because joint Memo signed by Decree Holders and their counsel would clearly indicate that Decree Holders have not only taken possession of the schedule property but also original documents. Hence, objection so filed by the Decree Holder does not merit for consideration.

Since because, joint memo speaks about delivery of vacant possession of suit schedule premises along with original documents, there is nothing to be executed against the JDR.

In the Execution Petition, Decree Holders have claimed Rs.6,50,000/- payable to the mortgagors. A perusal of compromise petition filed in O.S. No.5682/2016 would show that it is for the plaintiffs to pay a sum of Rs.3,00,000/- to the defendants out of Rs.6,50,000/- and it is for the defendant to pay remaining balance of Rs.3,50,000/- to the mortgagors. Now, it is shown to the satisfaction of the court that plaintiffs/ Decree Holders have already taken possession of the property and original documents also. Therefore, payment of a sum of Rs.6,50,000/- is between the JDR and Mortgagors. The Decree Holders cannot claim this amount.

In addition to the above, JDR has sworn to an affidavit. The averments made in affidavit is in tune with joint Memo so filed containing signatures of Decree Holders and their counsel. In view of the above, Memo dated 14.09.2023 is deserves to be allowed by rejecting objection of the Decree Holders dated 27.06.2025.

Therefore, the following:

ORDER

Memo dated 14.09.2023 filed by the JDR is hereby allowed and EP is dismissed as fully satisfied.

Under the circumstances, parties to the petition shall bear their own costs.

(14.10.2025)
**XXV Addl. City Civil
& Sessions Judge, Bangalore**